

26STCV02219 26STCV02219

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 26STCV02219 Hearing Date: August 17, 2026 Dept: 732

Dingjun Huo, et al. v. Rui Wen Tan, et al.

Monday, August 17, 2026

CASE NUMBER: 26STCV02219

UNOPPOSED

"Specially

Appearing Defendant" Rui Wen Tan's Demurrer to the Complaint

Facts:

On November 1, 2024, Plaintiff Dingjun Huo entered into a "Mining Equipment Investment Agreement" for the delivery of certain equipment, which never arrived. [Comp., Ex. B.] Plaintiff paid the equivalent of \$203,70331 in Chinese Yuan currency. A death certificate from Mexico regarding Yongxiong Tan on February 6, 2025 due to gunshot wound. [Id., Ex. C.] Plaintiffs identify Rui Wen Tan as the representative of the Estate. [Id., ¶ 3.]

Procedural

History: On January 21, 2026, Plaintiffs
filed their six cause of action complaint:

1. Breach Of Written Contract

2. Breach Of Personal Guaranty

3. Breach Of Implied Covenant of Good

Faith and Fair Dealing

4. Common Counts (Money Had and Received)

5. Fraud (Intentional Misrepresentation)

6. Accounting

“Specially

Appearing Defendant” Rui Wen Tan filed the subject demurrer on March 30, 2026. On May 22, 2026, Tan filed a notice of non-opposition. On May 28, 2026, the court continued the demurrer from June 3, 2026.

Discussion:

I.

DEMURRER

“[A] demurrer tests the legal sufficiency of the allegations

in a complaint.” (Lewis v. Safeway, Inc.

(2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge

defects that appear on the face of the pleading under attack or from matters

outside the pleading that are judicially noticeable. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in

ruling on a demurrer, a court may not consider declarations, matters not

subject to judicial notice, or documents not accepted for the truth of their

contents].) For purposes of ruling on a demurrer, all facts pleaded in a

complaint are assumed to be true, but the reviewing court does not assume the

truth of conclusions of law. (Aubry v.

Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

“Specially Appearing Defendant” Rui Wen Tan denies any

status as an estate representative. Tan contends Plaintiffs elected not to

proceed with any claims with the Probate Court, and therefore any claims are

now barred by the one-year statute of limitations. (Code Civ. Proc., § 366.2;

Probate Code, § 9100.)

Defendant cannot both specially appear and present a demurrer. (Code Civ. Proc., § 1014.)

The demurrer improperly relies on extrinsic evidence and inference regarding the denial of Defendant as an estate representative and the failure of Plaintiffs to proceed with a probate action thereby barring the subject action. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) Furthermore, the actual complaint alleges Tan personally guaranteed the debt, which is nowhere addressed in the demurrer. [Comp., ¶ 3.]

The demurrer while unopposed, the demurer is OVERRULED.

Superior Court of California

County of Los Angeles

Department 732

DINGJUN HUO, an individual;
XIAOMEI XU, an individual,

Plaintiffs,

v.

RUI WEN TAN, erroneously sued as
RUI WEN TAN, as Personal Representative of the ESTATE OF YONGXIONG TAN,
Deceased, et al.,

Defendants.

Case No.:
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[TENTATIVE] RULING RE:

Demurrer to the complaint

Defendant Rue Wen Tan's

Demurrer to the Complaint is OVERRULED. The demurrer constitutes a general appearance. Tan to answer the complaint within 10 days of this order.

Plaintiff to give notice.

Dated: August 17, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court